

		facie showing that it was not the seller of the vehicle. Civ. Code §§ 1770, 1780, 1782. In opposition, Plaintiff does not address this point but only argues that Defendant's attacks all fail for the same reason its attacks on the first through third causes of action fail. This does not address the argument specific to the CLRA claim that <i>Defendant</i> was not the seller regardless of who was the buyer. Defendant's motion for summary adjudication of Plaintiff's fifth cause of action is granted.
11.	2024-1408350 Guo vs. Je Beaute, Inc.	filed by Plaintiff Jingyi Guo ("Plaintiff") is granted. The Court declines to consider Hsu's alternative motion for summary adjudication. The motion for summary judgment by Defendant Fei He on Plaintiff's Complaint is vacated. <u>HSU MSJ/MSA</u> As an initial matter, the Court notes Hsu did not properly serve the notice and moving papers on Plaintiff. (Cal. Rules of Ct., Rule 2.251(c)(3)(B).) There is no showing that Plaintiff affirmatively consented to electronic service. However, Plaintiff served and filed a timely opposition without objecting to service. In addition, Hsu did not serve the notice and moving papers on Cross-Defendant Sanqian Zhang ("Zhang"), who already appeared by the time Hsu filed this motion. However, the Court exercises its discretion to proceed with the merits of the motion. (<i>Caruthers Bldg. Co. v. Johnson</i> (1916) 174 Cal. 20, 24 ["The failure to serve a given party will not deprive the court of jurisdiction to grant the motion in so far as it can be granted without affecting the rights of the party not served."].) The Court also notes Plaintiff's electronic service of Plaintiff's opposition on Zhang, a self-represented litigant, is improper. (Cal. Rules of Ct., Rule 2.251(c)(3)(B).) The Court exercises its discretion to consider Plaintiff's opposition despite improper service on Zhang. (<i>Caruthers Bldg. Co. v. Johnson</i>, 174 Cal. at 24.) The Court further notes Hsu did not properly serve Hsu's reply on Plaintiff and did not serve Zhang. (Cal. Rules of Ct., Rule 2.251(c)(3)(B).) The Court declines to consider the papers Hsu filed in support of Hsu's reply. Plaintiff did not file a separate statement in opposition to the motion. "The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving

party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed.” (Code Civ. Proc., § 437c, subd. (b)(3); *see*, Cal. Rules of Ct., Rule 3.1350(e)(2) [The opposition must include a separate statement in opposition to the motion for summary judgment or summary adjudication or both.].) “Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court’s discretion, for granting the motion.” (Code Civ. Proc., § 437c, subd. (b)(3).)

“The separate statement is not merely a technical requirement, it is an indispensable part of the summary judgment or adjudication process. ‘Separate statements are required not to satisfy a sadistic urge to torment lawyers, but rather to afford due process to opposing parties and to permit trial courts to expeditiously review complex motions for ... summary judgment to determine quickly and efficiently whether material facts are disputed.’ (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 335 [282 Cal.Rptr. 368].)” (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 415-416, citing *Whitehead v. Habig* (2008) 163 Cal.App.4th 896, 902.)

The Court exercises its discretion to consider the evidence Plaintiff submitted in opposition to Hsu’s motion despite the lack of a separate statement.

The Court also notes Plaintiff filed a request to continue the hearing on this motion on April 10, 2026. (Request to Continue Summary Judgment Hearing, ROA No. 305.) Plaintiff did not seek *ex parte* relief. Nor did Plaintiff request additional time in Plaintiff’s declaration filed in opposition to this motion on May 20, 2026, over a month after Plaintiff’s request for additional time. Based on Plaintiff’s opposition and lack of any request to continue the hearing in the opposition served and filed over a month later, it no longer appears Plaintiff needs additional time to complete discovery to oppose Hsu’s motion.

General legal authority

In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (*Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.* (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial

burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (*Ibid.*) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) “A court identifies the issues framed by the pleadings, determines whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in the moving party’s favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues.” (*Clark v. Baxter Healthcare Corp.* (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.)

“A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).)

A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; *see Sheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such information].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To

meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Merits

Plaintiff's complaint alleges the following causes of action against Hsu, as Doe defendant number 3: FEHA – sex harassment; FEHA – sex discrimination; FEHA – retaliation; FEHA – failure to take all steps necessary to stop discrimination, harassment, and/or retaliation; wrongful termination in violation of public policy; whistleblower retaliation; negligent failure of employer to establish FEHA compliant policies and procedures and to appropriately enforce FEHA provision; negligent failure of employer to investigate, supervise or prevent FEHA violations from occurring; and negligent hiring, training, supervision.

Hsu contends Hsu is entitled to summary judgment on the following three grounds:

1. There is no triable issue of material fact that Guo has failed to exhaust administrative remedy as to Mishell Hsu required by the 1st through 4th and 7th through 9th causes of action for FEHA claims or FEHA violations;
2. There is no triable issue of material fact that Hsu is not Guo's employer and cannot be liable for 1st through 4th and 7th through 9th causes of action for FEHA claims or FEHA violations;
3. Hsu is not an employer, and she cannot be liable for the 5th cause of action for wrongful termination in violation of public policy and 6th cause of action for whistleblowing retaliation.

FEHA claims alleged in the first through fourth and seventh through ninth causes of action

“Any person claiming to be aggrieved by an alleged unlawful practice may file with the department a verified complaint, in writing, that shall state the name and address of the person, employer, labor organization, or employment agency alleged to have committed the unlawful practice complained of, and that shall set forth the particulars thereof and contain other information as may be required by the department. The director or the director's authorized representative may in like manner, on that person's own motion, make, sign, and file a complaint.” (Gov. Code, § 12960.)

Government code “section 12960 clearly mandates that aggrieved persons set forth in their [administrative] complaint the names of *persons* alleged to have committed the unlawful discrimination. In order to bring a civil lawsuit under the FEHA, the defendants must have been named in the caption or body of the [administrative] charge.” (*Cole v. Antelope Valley Union High School Dist.* (1996) 47 Cal.App.4th 1505, 1515.) A plaintiff is barred from suing individual defendants for failing to name them in the DFEH charge.” (*Id.*, at 1511.)

Hsu met Hsu’s initial burden to show Plaintiff is barred from bringing the first through fourth and seventh through ninth causes of action against Hsu. (Separate Statement, ROA No. 208, Hsu’s Undisputed Material Fact [“DMF”] No. 8 and 9.) The Court notes Plaintiff was represented by counsel at the time Plaintiff filed the administrative complaint and amended administrative complaint.

Plaintiff did not oppose Hsu’s motion on this ground. Plaintiff did not raise a triable issue of material fact as to whether Hsu was named in the administrative complaint or amended administrative complaint.

Because Hsu met her initial burden on the first ground, the Court declines to consider whether Hsu met her initial burden to show Hsu is not liable for the FEHA claims (the same causes of action above) because Hsu is not Plaintiff’s employer.

Fifth and sixth causes of action

Plaintiff’s fifth cause of action for wrongful termination in violation of public policy alleges Plaintiff was wrongfully terminated in violation of public policy in relation for engaging in protected activity, which “is a direct violation of public policy embodied in FEHA.” (Complaint, ¶¶ 57 and 58.) Plaintiff’s sixth cause of action for whistleblower retaliation alleges JE Beate retaliated against Plaintiff by wrongfully terminating her employment in violation of Labor Code section 1102.5. (Complaint, ¶¶ 61 and 62.) Plaintiff refers to Labor Code section 1102.5, subdivision (b) in the complaint. (*Id.*, ¶ 60.)

Individual supervisors may not be sued for a cause of action for discharge in violation of public policy. (*Reno v. Baird*, 18 Cal.4th at 663; *see, Le Bourgeois v. Fireplace Manufacturers, Inc.* (1998) 68 Cal.App.4th 1049, 1052 [supervisory personnel cannot be sued as individuals for wrongful discharge in violation of fundamental public policy where the basis for the cause of action is alleged discrimination under California’s Fair Employment and Housing Act (FEHA), Government Code section 12900 et seq.”].) Subject to

exceptions not applicable here, an employer “includes any person regularly employing five or more persons, or any person acting as an agent of an employer, directly or indirectly...” (Gov. Code, § 12926, subd. (d).)

Labor Code section 1102.5, subdivision (b) provides as follows:

An employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information, or because the employer believes that the employee disclosed or may disclose information, to a government or law enforcement agency, to a person with authority over the employee or another employee who has the authority to investigate, discover, or correct the violation or noncompliance, or for providing information to, or testifying before, any public body conducting an investigation, hearing, or inquiry, if the employee has reasonable cause to believe that the information discloses a violation of state or federal statute, or a violation of or noncompliance with a local, state, or federal rule or regulation, regardless of whether disclosing the information is part of the employee's job duties.
(Lab. Code, § 1102.5, subd. (b).)

A “*Tameny* cause of action for wrongful termination, or a claim of retaliation, lies only against the employer, not against the supervisor through whom the employer commits the tort.” (*Lloyd v. County of Los Angeles* (2009) 172 Cal.App.4th 320, 330; *Khajavi v. Feather River Anesthesia Medical Group* (2000) 84 Cal.App.4th 32, 53 [“As a matter of law, only an employer can be liable for the tort of wrongful discharge in violation of public policy.”].)

Hsu met her initial burden to show she is an employee of Je Beaute and not Plaintiff’s employer during the period of Plaintiff’s employment. (DMF No. 10 and 12.) Plaintiff does not submit any evidence to raise a triable issue of material fact as to whether Hsu was her employer.

Accordingly, Hsu’s motion for summary judgment is granted. The Court declines to consider Hsu’s alternative motion for summary adjudication.

He MSJ

Plaintiff dismissed He without prejudice on May 19, 2026. (Request for Dismissal, ROA No. 375.) He’s motion is vacated.

Hsu shall give notice.